

26LBCV00049 26LBCV00049

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-25

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Case Number: 26LBCV00049 Hearing Date: June 25, 2026 Dept: S27

1.

Background Facts

Plaintiff filed his operative First Amended Complaint on 3/18/26. The FAC includes causes of action for IIED, trespass, negligence, and tenant harassment, and seeks monetary damages and injunctive relief. The substantive allegations of the FAC are found at ¶¶7-10, wherein Plaintiff alleges:

7. Defendant Andrew Bish

personally engaged in a pattern of harassment, intimidation, and unauthorized conduct directed at Plaintiff.

8. Defendant repeatedly appeared at Plaintiff's residence without notice or lawful authority, including entering Plaintiff's driveway and attempting to access the premises.

9. Defendant engaged in threatening and confrontational conduct, which at times required police involvement.

10. Defendant's conduct was intentional and directed at Plaintiff personally.

2. Motion

for Preliminary Injunction

On 5/04/26, Plaintiff filed this motion for preliminary injunction. As an initial note, the notice of motion indicates Plaintiff will seek relief "on the

above date and time,” but there is no hearing date in the caption of the pleading. Defendant filed timely opposition to the motion and notes the correct hearing date in the caption of the opposition, so Defendant clearly has notice of the time and date of the hearing.

The notice of motion indicates Plaintiff seeks an order “prohibiting Defendant Andrew Bish from engaging in further harassment, unauthorized entry, and interference with Plaintiff’s tenancy.” Plaintiff filed a proposed order with the motion; the proposed order shows that Plaintiff is actually seeking an order that Defendant shall not enter or attempt to enter Plaintiff’s residence, Defendant shall not contact Plaintiff directly regarding tenancy matters, Defendant shall not act or represent himself as a property manager for Plaintiff’s residence, and Defendant shall remain at least 100 feet away from Plaintiff’s residence.

Defendant filed timely opposition to the motion, wherein he disputes Plaintiff’s factual account and also argues that the proposed relief is overbroad in nature. Defendant declares he has never unlawfully entered Plaintiff’s residence and has not been on the property at all since 2024, when the owner of the property hired a property management company to handle all tenant-related issues. The Court reviewed Plaintiff’s declaration in support of the motion, and the conduct about which he complains occurred in 2023 and 2024; indeed, the last incident detailed in the declaration in support of the motion occurred on 2/09/24. The Court finds the moving papers do not show an ongoing pattern of conduct, such that even if Plaintiff’s version of events is believed, there is no irreparable harm and no need for injunctive relief.

The Court notes that any reply to the opposition was due on or before 6/17/26. Plaintiff did not file timely reply papers and the Court will not consider late-filed reply papers. The Court finds injunctive relief unnecessary and denies the motion.

The parties are reminded that there is a Case Management Conference on calendar concurrently with the hearing on the above motion. The Court asks the

parties to make arrangements to appear remotely at the hearing on the motion and the CMC.